

Court No. - 7

Case :- WRIT - C No. - 73220 of 2010

Petitioner :- M/S Rana Griders Limited

Respondent :- Pvvnl And Another

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Pankaj Kumar Shukla

Hon'ble Vineet Saran,J.

Hon'ble Sabhajeet Yadav,J.

Put up tomorrow, i.e., 21.12.2010 as fresh.

Order Date :- 20.12.2010

Ram Murti

Court No. - 7

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Hon'ble Sabhajeet Yadav,J.

Put up on 10.1.2011 as a fresh case along with the record of Writ Petition No. 34864 of 2009.

In the meantime, learned counsel appearing for the respondents may obtain instructions.

Order Date :- 22.12.2010

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(Sabhajeet Yadav, J.)

(Vineet Saran, J.)

Chief Justice's Court

Case :- WRIT - C No. - 73220 of 2010

Petitioner :- M/S Rana Griders Limited

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Respondent Counsel :- Pankaj Kumar Shukla

Hon'ble Ferdino Inacio Rebello,Chief Justice

Hon'ble Vineet Saran,J.

The petitioner, which is a company has entered into an agreement with the respondent no. 1 on 25.1.2010. According to the petitioners the respondent no. 1 by Office Memorandum dated 29.11.2010 sanctioned 600 KVA additional load. The said additional load was supposed to be released on depositing Rs. 4,22,444/- and furnishing bank guarantee equivalent to additional security amount of Rs. 1,16,27,400/-. That amount was subject matter of a writ petition, which is pending before this Court and has been stayed by this Court.

According to the petitioners, the respondents are demanding the said amount in terms of Clause 4.49 of the U.P. Electricity Supply Code, 2005.

We have heard learned counsel for the parties.

A perusal of Clause 4.49 would make it clear that it applies only in those cases where recoveries have been stayed. In the instant case what was in issue is the demand of additional security. A learned Division Bench of this Court had occasion to consider that issue in **Civil Misc. Writ Petition No. 38 of 2009 (Tehri Girders Limited and another vs. Paschimanchal Vidyut Vitran Nigam Ltd. and others)** and other petitions. This Court has categorically recorded a finding that Clause 4.49 would not apply in such matters.

We are in agreement with the view that Clause 4.49 cannot be subject matter of demand in respect of additional security. That is only in respect of recovery of any dues by licensee. The additional security by no stretch of imagination can be said to be dues and at best the respondents can claim security for the additional 600 KVA in terms of Clause 4.20 of the Code. According to the petitioner, it is ready to furnish security for the additional 600 KVA in terms of Clause 4.20.

The statement made on behalf of the petitioner is accepted.

In the light of that, this writ petition will have to be allowed. Accordingly, the petition is made absolute in terms of the prayer clause 1 and 2 subject to what we have observed above.

We make it clear that other petitions which are pending in this Court are not covered by this judgment and will be subject to the orders passed in those petitions.

Order Date :- 10.1.2011

p.s.

(Vineet Saran, J.) (F.I. Rebello, C.J.)

Chief Justice's Court

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Hon'ble Vineet Saran,J.

There are two applications, one for amendment of the cause title and the other for correction.

After the matter has been heard for some time, learned counsel for the applicant states that he may be permitted to withdraw the writ petition with a liberty to file a fresh petition on behalf of the aggrieved persons.

Considering the above, the impugned order dated 10.1.2011 is recalled, and the writ petition is allowed to be withdrawn with liberty to file a fresh writ petition by the aggrieved persons.

Accordingly, the applications and the writ petition are disposed of.

Order Date :- 8.4.2011

RKK/-

(F.I. Rebello, CJ)

(Vineet Saran, J)

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Respondent Counsel :- Pankaj Kumar Shukla

Hon'ble Ferdino Inacio Rebello,Chief Justice
Hon'ble Vineet Saran,J.

Order on C.M. Correction Application No.75417 of 2011:

Disposed of.

For orders, see order of date passed on the memo of writ petition.

Order Date :- 8.4.2011
RKK/-

(F.I. Rebello, CJ)

(Vineet Saran, J)

Case :- WRIT - C No. - 73220 of 2010
Petitioner :- M/S Rana Griders Limited
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Petitioner Counsel :- B.C. Rai
Respondent Counsel :- Pankaj Kumar Shukla

Hon'ble Ferdino Inacio Rebello,Chief Justice
Hon'ble Vineet Saran,J.

Order on C.M. Amendment Application No.44713 of 2011:

Disposed of.

For orders, see order of date passed on the memo of writ petition.

Order Date :- 8.4.2011
RKK/-

(F.I. Rebello, CJ)

(Vineet Saran, J)